

25VECV02284 25VECV02284

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-21

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JPMORGAN CHASE BANK, N.A.,

Plaintiff,

vs.

GREGORY A MOGAB, A PROFESSIONAL ACCOUNTANCY CORPORATION, a California corporation; GREGORY A MOGAB, an individual; and DOES 1 through 50, inclusive,

Defendants.

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CASE NO.: 25VECV02284

ORDER DENYING DEFENDANT GREGORY A MOGAB'S MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

I. BACKGROUND

Plaintiff JPMorgan Chase Bank N.A. ("Plaintiff") filed this breach of contract action against Defendants Gregory A Mogab ("Mogab") and Gregory A Mogab, A Professional Accountancy Corporation ("Mogab Corporation") (jointly, "Defendants"). Plaintiff alleged Mogab was the guarantor for the loan Plaintiff made to Mogab Corporation, the borrower.

The Court entered default judgment against Defendants on August 19, 2025.

Mogab moves to set aside default and default judgment entered against him.

II. PROCEDURAL HISTORY

On April 24, 2025, Plaintiff filed a Complaint for (1) Breach of Contract and (2) Breach of Guaranty.

On June 10, 2025, the Court entered default against Defendants.

On August 19, 2025, the Court entered default judgment against Defendants.

On August 18, 2026, Mogab filed the instant Motion.

On September 4, 2026, Plaintiff filed a Notice of Stay of Proceedings.

III. LEGAL STANDARD

A. Discretionary or Mandatory Relief – Code of Civil Procedure § 473(b)

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken...” (Code Civ. Proc. § 473(b).) [1]

Code of Civil Procedure § 473(b) “provides for both discretionary and mandatory relief. [Citation.]” (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.) For discretionary relief, “[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473(b).)

A moving party need only establish “mistake, inadvertence, surprise, or excusable neglect” by a preponderance of the evidence. (Luz v. Lopes (1960) 55 Cal.2d 54, 62.) Excusable neglect exists where counsel or the party acted as a reasonably prudent person would under the circumstances. (See Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206; See also Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258.)

An application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (See Code Civ. Proc. § 473(b); see also English v. IKON Bus. Solutions (2001) 94 Cal.App.4th 130, 143.)

B. Void Judgment or Order – Code of Civil Procedure § 473(d)

Code of Civil Procedure § 473(d) provides, “[t]he court may... on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc. § 473(d); see also Zisk v. City of Roseville (1976) 56 Cal.App.3d 41, 47; accord Bastajian v. Brown (1941) 19 Cal.2d 209, 216; Baird v. Smith (1932) 216 Cal. 408, 411.) “[T]he trial court ‘has no statutory power under section 473, subdivision (d) to set aside a judgment [or order] that is not void....’” (Pittman v. Beck Park Apartments Ltd. (2018) 20 Cal.App.5th 1009, 1020 [internal citations omitted].)

A judgment may be void for lack of improper service of summons. A motion for relief from a judgment valid on its face, but void for improper service, must be brought with a “reasonable” time after the default judgment. (See California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 212, 225-226 [disapproving prior authority that applied 2-year time limit to § 473(d) motions to vacate].) In contrast, there is no time limit on a motion for relief under § 473 where it is clear from the face of the record that the judgment should not have been entered. (See Plotitsa v. Superior Ct. (Kadri) (1983) 140 Cal.App.3d 755,

761.)

C. Lack of Actual Notice - Code of Civil Procedure § 473.5

Code of Civil Procedure § 473.5 permits the Court to vacate a default when service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him. (See Code Civ. Proc. § 473.5(a).) “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service... of a written notice that the default or default judgment has been entered.” (Id.)

A defendant is entitled to relief under § 473.5 if defendant has not received actual notice of the proceedings. Imputed or constructive notice is not “actual” notice. (See *Rosenthal v. Garner* (1983) 142 Cal.App.3d 891, 895.)

The phrase actual notice means genuine knowledge and does not include constructive or imputed notice to the client. (See *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.) “A defendant seeking vacation of a default judgment entered against him must further show that his lack of actual notice in time to defend the action was not caused by his inexcusable neglect or avoidance of service.” (Id. at 1077-1078, citing Code Civ. Proc. § 473.5(c).) Additionally, “the party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc. § 473.5(b).)

IV. ANALYSIS

Mogab moves to set aside default and default judgment entered against him pursuant to § 473(b), § 473(d), and § 473.5 on grounds that he was not personally served. (See Mot. at 4:6-10.) Mogab attests he departed the country to permanently reside in the Philippines on October 2, 2024, and hasn’t lived in this country since. (See Declaration of Gregory Mogab filed August 18, 2025, ¶ 2.) Mogab attests he was not in the country on the service date, and he did not live nor was present at the service address on the service date. (See id., ¶¶ 3-4.) Mogab attests “If I overlooked any notice relating to this case, it was due purely to inadvertence due to the difficulty of keeping track of business and financial matters from overseas.” (Id., ¶ 6.) Mogab attests he first learned of this action while attempting to settle another case and learned an abstract of judgment had been recorded related to this case. (See id., ¶ 7.)

As an initial matter, the Court notes this application is brought on behalf of Mogab and not Mogab Corporation.[2]

Next, the Court finds Mogab has not shown he is entitled to relief. Here, the proof of service shows Mogab was personally served on April 29, 2025, at 19136 Harliss St. (See Proof of Service filed May 2, 2025.) A proof of service containing a declaration from a registered process server invokes a rebuttable presumption of valid service. (See *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390; see also Evid. Code § 647.) The party seeking to defeat service of process must present sufficient evidence to show that the service did not take place as stated. (See *Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.) Merely denying service took place without more is insufficient to overcome the presumption. (See id., at 1428; *Bonzer v. City of Huntington Park* (1993) 20 Cal.App.4th 1474, 1481, 25 Cal.Rptr.2d 278 [upon credible evidence that document was never received, presumption of receipt from mailing “ceased to exist”].) Moreover, the court is “not required to accept...self-serving evidence contradicting the process server’s declaration.” (*Rodriguez v. Nam Min Cho* (2015) 236 Cal.App.4th 742, 751.)

Mogab’s declaration merely denies he was personally served on April 29, 2025. This evidence, without more, is insufficient to overcome the presumption established by the registered process server’s declaration he personally served Mogab on April 29, 2025. Mogab’s insufficient evidence neither shows the proof of service is void nor that he did not have actual notice of this action; thus Mogab has not shown he is entitled to relief under § 473(d) or § 473.5.

Mogab also does not show he is entitled to relief under § 473(b). Mogab’s general reference to overlooking any notice is insufficient to establish grounds for discretionary relief. Mogab identifies no specific act of neglect for which he had a

reasonable excuse. Thus, the Court finds Mogab has not shown he is entitled to relief under § 473(b).

Based on the foregoing, the Court DENIES Mogab's Motion to Set Aside Default and Default Judgment.

V. CONCLUSION

Based on the foregoing, the Court DENIES Mogab's Motion to Set Aside Default and Default Judgment.

IT IS SO ORDERED.

DATED: September 21, 2025

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] Any application to set aside default and default judgment entered against Mogab Corporation would require counsel. "A corporation cannot appear in court by an officer who is not an attorney and it cannot appear in propria persona." (Paradise v. Nowlin (1948) 86 Cal.App.2d 897, 898; see also Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284 n.5.)